

CHAPTER 21.

An Act to provide further protection to certain animals. [17th May 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) No person shall promote, or cause or knowingly permit to take place any public performance which includes any episode consisting of or involving—

- (a) throwing or casting, with ropes or other appliances, any unbroken horse or untrained bull; or
- (b) wrestling, fighting, or struggling with any untrained bull; or
- (c) riding, or attempting to ride, any horse or bull which by the use of any appliance or treatment involving cruelty is, or has been, stimulated with the intention of making it buck during the performance;

Prohibition of certain public contests, performances, and exhibitions with animals.

and no person shall in any public performance take part in any such episode as aforesaid.

(2) For the purposes of proceedings under paragraph (a) or paragraph (b) of the preceding subsection, if an animal appears or is represented to spectators to be unbroken or untrained it shall lie on the defendant to prove that the animal is in fact broken or trained.

In proceedings under paragraph (c) of the said subsection in respect of the use of any such appliance or treatment as is therein mentioned upon a horse before or during a performance, it shall be a defence for the defendant to prove that he did not know, and could not reasonably be expected to know, that the appliance or treatment was to be or was used.

(3) In this section—

the expressions “ horse,” and “ bull ” have, respectively, the same meanings as in the Protection of Animals Act, 1911;

the expression “ public performance ” does not include a performance presented to the public by means of the cinematograph.

(4) In the application of this section to Scotland—

2 & 3 Geo. 5.
c. 14.

the expression “ horse ” has the same meaning as in the Protection of Animals (Scotland) Act, 1912; and

the expression “ bull ” means ox as defined in that Act.

Penalties.

2. If any person contravenes any of the provisions of the foregoing section, he shall be liable upon summary conviction to a fine not exceeding one hundred pounds, or, alternatively, or in addition thereto, to be imprisoned for any term not exceeding three months.

Short title
and extent.

3.—(1) This Act may be cited as the Protection of Animals Act, 1934.

(2) This Act shall not extend to Northern Ireland.

CHAPTER 22.

An Act to amend the designation of the Assessor of Railways and Canals in Scotland and the law relating to the appointment of the said assessor and the provision of superannuation allowances for the said assessor and the clerks and other officers employed by him. [22nd June 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Office of
Assessor of
Public
Undertak-
ings.
17 & 18 Vict.
c. 91.

1. The right of appointing to and removing from the office of Assessor of Railways and Canals in Scotland, constituted in terms of section twenty of the Lands Valuation (Scotland) Act, 1854, shall be transferred to and vested in the Secretary of State, and such assessor shall be designated and known as the Assessor of Public Undertakings (Scotland).